

them, under sect. 2, of the Act of 1882, trustees of the settlement for the purposes of the Act, and the powers are made by the settlement exercisable by the trustees or *trustee* for the time being, it will be sufficient to give notice under sect. 45, to a sole surviving or continuing trustee: and the number of trustees need not, for the purposes of the notice, be completed (*f*)

13. **Purchaser need not inquire as to notice.**— By sect. 45, sub-sect. (3), a person dealing in good faith with the tenant for life is not concerned to inquire respecting the giving * of any notice required by that section. As, [*559] however, under the Act of 1882 at least a month's notice to the trustees was imperative, any person dealing with the tenant for life was bound to see that there had been, for at least that period, before any dealing took place, proper trustees to whom notice could have been given; but now, under the Act of 1884, it will be sufficient if the trustees, although more recently appointed, by writing under their hands, either waive notice altogether or accept shorter notice, and it would seem to follow that the purchaser is not now in any case bound to do more than ascertain that there were trustees in existence at the time the contract was entered into.

Notice by registered letter.— If a shorter notice is accepted, it may still be sent by registered letter, as provided by the Act of 1882.

It is conceived that it is not essential to the validity of the notice that it should be sent by a registered letter, but that that is only a convenient mode authorised by the Act of serving the notice.

14. **Duties of trustees on receipt of notice.**— We come now to consider what are the duties of trustees of the settlement under the Act after they have received a notice of an intended dealing by the tenant for life, and it is somewhat remarkable that, having regard to the importance attached by the Act to the service on the trustees of notice of any intended dealing by the tenant for life with the settled land,

(*f*) *Re Garnett Orme and Hargreaves' Contract*, 25 Ch. D. 595.